SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 March 11, 2026
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 8:30 AM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): Derrick L. Beverly via LACourtConnect (Self-Represented)

NATURE OF PROCEEDINGS: Hearing on Motion - Other To Vacate Modifying Sanctions Order

The matter is called for hearing.

The Court has read and considered all documents filed herein connection regarding Defendant Derrick Lamont Beverly's Motion to Vacate and Modify Sanctions Order.

Counsel for Plaintiff appears in opposition.

Parties are given the opportunity to argue.

After reading and considering all moving papers filed in support and opposition of the motion, and hearing oral argument, the Court makes its Final Ruling as follows:

The Motion to Vacate UNLAWFUL_DETAINER_NOTICE_OF_MOTION_AND_MOTION_TO_VACATE_AND_, MODIFY_SANCTIONS_ORDER_MEMPRAMDM_OF_POINTS_AND_AUTHORITIES_DECLARATION_OF_DERRICK_LAMONT_BEVERLY_EXHIBIT_LIST_NOTICE_OF_PROOF_AND_PROOF_OF_ELECTRONIC_SERVICE filed by Derrick L. Beverly on 02/02/2026 is Denied.

While styled as a motion “to vacate and modify” the court’s January 20, 2026, order imposing sanctions against Defendant, this motion is, in essence, a motion seeking reconsideration of the court’s January 20 order, subject to Code of Civil Procedure § 1008(a). Considering the motion as such it must be denied, as Defendant has not submitted an affidavit or declaration stating “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” Moreover, it fails on its merits. A court acts in excess of jurisdiction when it grants a motion to reconsider that

is not based upon "new or different facts, circumstances or law." (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499.) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Id.) That a party believes the court misinterpreted the law is not grounds for seeking reconsideration. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) Moreover, there is a strict requirement of diligence, which means the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) The burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212–213.) The motion is not based upon any new or difference facts, circumstances, or law; a promise that Defendant will attempt proper service in the future—judgment was entered over three years ago and has since become final, rendering the possibility of meritorious future filings speculative—does not justify setting aside a sanction imposed on the basis of Defendant's past conduct.

Counsel for Plaintiff to give notice.